

Complaint, ¶ 16.) The FAC alleges that Plaintiffs had reported Defendants' conduct to the police and an investigation is ongoing. (FAC, ¶ 20.)

The Court finds that Harry and Megan's statements constitute protected activity under Section 425.16, subdivisions (e) because they were statements "in furtherance of [their] constitutional rights of freedom of speech . . . in connection with a public issue" (Code of Civ. Proc. § 425.16, subd. (b)(1).)

"The law is that communications to the police are within SLAPP." (*Comstock v. Aber* (2012) 212 Cal.App.4th 931, citing *Walker v. Kiouisis* (2001) 93 Cal.App.4th 1432, 1439 [complaint to police is "made in connection with an official proceeding authorized by law."].) In *Comstock v. Aber*, the defendant made allegations of sexual assault against the plaintiff to three groups of people: (1) the police, (2) a nurse, and (3) 'friends.' (Id. at 941.) Therein the Court held that all three statements fell within the anti-SLAPP protections of section 425.16. (Id. at pp. 941- 942.)

Child molestation or child abuse is an issue of public concern. (*Grenier v. Taylor* (2015) 234 Cal.App.4th 471, 483 ["[A]llegations of abuse by members of the clergy and the protection of children concern issues of public interest."]; see also *Cross v. Cooper* (2011) 197 Cal.App.4th 357, 371–379 [discussing cases; holding that disclosure about a registered sex offender living in the neighborhood constituted protected speech in connection with an issue of public interest].) Harry and Megan's alleged statements that Summer was a child molester or child trafficker touched on an issue of public concern.

The third cause of action for intentional infliction of emotional distress is based entirely on the same conduct as the second cause of action for defamation. (Cross-Complaint, ¶ 39 ["The conduct of Cross-Defendants as alleged herein was extreme and outrageous."].) The same goes for the fourth cause of action for negligent infliction of emotional distress. (Cross-Complaint, ¶ 44 ["Cross-Defendants were negligent in making the statements alleged herein."].)

Harry and Megan have met their threshold burden of showing that the Cross-Complaint's causes of action against them arise from an act in furtherance of Harry and Megan's protected conduct.

The analysis is similar as to Cross-Defendant Erika Shawver ("Shawver"). The Cross-Complaint alleges only one fact specifically directed at Shawver: "Winslow published false and defamatory

statements about Summer to third parties through a Facebook group called San Clemente Moms, which is moderated and administered by Erika Shawver.” (Cross-Complaint, ¶ 15.) In other words, the only specific allegation made against Shawver in the Cross-Complaint is that she moderates and administers a Facebook group called San Clemente Moms, in which group Cross-Defendant Fallon Winslow posted something that included a picture of Cross-Complainant Summer, but the post was removed approximately one day after a request to remove it was submitted. (Id. at ¶¶ 13-14.) The Cross-Complaint does not allege the content of the post other than the fact that it included a picture of Summer. (Ibid.)

“It cannot be disputed that Facebook's website and the Facebook pages at issue are ‘public forums,’ as they are accessible to anyone who consents to Facebook's Terms.” (*Cross v. Facebook, Inc.* (2017) 14 Cal.App.5th 190, 199.) Further, the Facebook post at issue contained content in some way related to the allegations of misconduct regarding Cross-Complainants and Jane Doe. (Cross-Complaint, ¶ 25 [“These third parties reasonably understood that the statements were about Cross-Complainants.”].) As discussed previously, the analysis is the same with respect to the third cause of action for intentional infliction of emotional distress and the fourth cause of action for negligent infliction of emotional distress.

Thus, Shawver has met her threshold burden of showing that the Cross-Complaint’s causes of action against her arise from an act in furtherance of Shawver’s protected conduct.

Cross-Complainants now must establish a probability of prevailing on their claims.

Step Two: Probability of Prevailing

Once the Cross-Defendants have met their burden, the burden shifts to the Cross-Complainants to establish that there is a probability it will prevail on their claims. (Code Civ. Proc. § 425.16(b)(1); *Taus v Loftus* (2007) 40 C4th 683, 713; *Equilon Enters. v Consumer Cause, Inc.* (2002) 29 C4th 53, 67.) “Probability” means “reasonable probability.” (*Schoendorf v U.D. Registry, Inc.* (2002) 97 CA4th 227, 238.)

To meet this burden, the Cross-Complainants must show that the complaint is legally sufficient and supported by a prima facie showing, by admissible and competent evidence, of facts that would be sufficient to sustain a favorable judgment on the Cross-Complainants’ claims under the applicable evidentiary standard.